

STATE OF NEW YORK

9286 --A

IN SENATE

February 25, 2026

Introduced by Sen. SEPULVEDA -- read twice and ordered printed, and when printed to be committed to the Committee on Judiciary -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the civil practice law and rules, in relation to prohibiting undisclosed recording of mediation and court-annexed alternative dispute resolution proceedings

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 4506 of the civil practice law and rules is amended
2 by adding a new subdivision 2-a to read as follows:

3 2-a. (a) Notwithstanding any inconsistent provisions of this section
4 and article two hundred fifty of the penal law, no party to any court-
5 annexed alternative dispute resolution proceeding or conference or medi-
6 ation shall make an audio and/or visual recording of such proceeding,
7 without the express consent of all parties to the proceeding and the
8 mediator.

9 (b) No recording made in violation of this subdivision shall be admis-
10 sible in any judicial, administrative, or arbitral proceeding.

11 (c) Any violation of this subdivision may be deemed contempt of court
12 and shall be subject to fines or other sanction as the court may direct.

13 § 2. This act shall take effect on the ninetieth day after it shall
14 have become a law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD13729-03-6